

Arbitration Act & ADR Framework

Subject: Arbitration & Conciliation | Edition: 2026 Comprehensive Study Module

Statutory Scope: Sec 8 & 11: Mandatory Referral & Non-Stamping Curability (7-Judge Bench 2023), Sec 7: Group of Companies Doctrine for Non-Signatories (Cox and Kings 2024)

I. OVERVIEW & STATUTORY FOUNDATION

Separability of arbitration agreement, kompetenz-kompetenz, Group of Companies Doctrine, and Section 34 challenge grounds.

II. KEY SECTIONS & REGULATORY FRAMEWORK

• Sec 8 & 11: Mandatory Referral & Non-Stamping Curability (7-Judge Bench 2023)

• Sec 7: Group of Companies Doctrine for Non-Signatories (Cox and Kings 2024)

• Sec 34: Setting aside on Patent Illegality & Public Policy (Associate Builders 2015)

III. CORE PRECEDENTS & ADJUDICATORY PRINCIPLES

• Stamp Act 7-Judge Bench (2023) - Curable fiscal defect

• Vidya Drolia (2021) - Fourfold Non-Arbitrability Test

• Cox and Kings (2024) - Group of Companies Joinder

IV. EXAMINATION CHECKLIST & ADVOCACY APPLICATION

• Essential definitions, mandatory procedural steps, and jurisdictional thresholds.